

Section 01 00 00 - General Requirements

Amendment 0001 updates noted in red font.

1. GENERAL DESCRIPTION AND REQUIREMENTS

This is an Indefinite Quantity (IDIQ) Job Order Contract (JOC) for multi-traded maintenance, repair, alteration, and minor new construction at predetermined unit prices with price coefficients. Work under this contract shall be determined by individual FFP (Firm Fixed Price) Task Orders predicated on a performance-based scope of work. The typical project is expected to be in the \$2,000 to \$10,000,000 range (smaller and larger projects may also be considered).

Pricing of each Task Order is determined by:

- 1) Applying the appropriate Contractor's Coefficient factor and Multipliers as outlined in the Exhibit Line Item Numbers (ELINs) Schedule for each ordering period on RS Means Pre-Priced Line Items; and
- 2) Non-pre-priced tasks will be negotiated using the method described herein and multiplied by the Coefficient Schedule and Multipliers as outlined in the ELINs Schedule.

The Contractor shall provide all project management, planning, estimating, labor, transportation, materials, equipment, tools, supervision, design, and all other associated costs necessary to fulfill the requirements of each Task Order. Preparation of Contractor proposals and Task Order performance shall require management and coordination of numerous projects simultaneously. All costs associated with preparing proposals shall be the responsibility of the Contractor.

The Contractor shall establish and maintain a complete quality control program in accordance with applicable Specification Sections and contract clauses.

The Contractor shall implement, maintain, and control a system for identification, preparation, reproduction, distribution, and maintenance of all documentation, dates and information necessary for its internal management as well as for Government management of the individual projects and the total program to include state and local laws, ordinances, rules and regulations and manufacturers' instructions and recommendations which are necessary and related to the work.

Contractor shall prepare and submit required reports, maintain current record drawings, and submit required information.

As-built Record Drawings shall be kept during the progress of the job to serve as a record of all changes and corrections from the original layout on the drawings. Locations of all known sub-surface utility lines that are provided as new work, or discovered during excavation work, shall be detailed on the record drawings. In order that all newly provided buried or hidden items may be determined in the future, the drawings shall show their location using offset dimensions to two permanent fixtures or landmarks. This method shall be used to locate the end of each run and all changes in direction. Valves, splice boxes, and similar appurtenances shall be located by dimensioning along the utility run from a known reference point. The average depth of the item shall be recorded. Final As-Built Record Drawings shall be submitted to the Contracting Officer or authorized Government representative upon project completion in both hard copy and on CD Rom. Failure to maintain record drawings will result in retention from progress payments, and notation on the performance evaluation of record.

The Contractor shall provide materials lists to include trade names, brand names, model number, and ratings (if appropriate) for all materials necessary for a complete job.

The Contractor may be required to provide architectural, structural, mechanical, electrical, civil, or other engineering services for performance-based scopes of work as requested by the Contracting Officer or as required for filings or permits or submittal of documents for regulatory agency approval. The services shall be provided by architects or engineers registered and insured to practice in the particular professional field involved in the locality where the

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work is to be accomplished.

All documents prepared by architects, consultants and engineers for the Contractor under this Contract are subject to review by the Contracting Officer. Review by the Contracting Officer does not relieve any architects, consultants or engineers from the professional liability associated with documents they have prepared.

The Contractor's proposal for individual Task Orders shall separate the costs for design and engineering services from the detailed R.S. MEANS line items costs for construction. The proposal shall identify non-pre-priced tasks and performance times. Complete plans and design calculations are to be provided as specified in Unified Facilities Guide Specifications Division 01.

The following documents are to be used in the preparation and execution of work under this contract:

- a. Unified Facilities Guide Specifications Division 01 — General Requirements
- b. Unified Facilities Guide Specifications Divisions 02 through 48

The current DOD Unified Facilities Guide Specifications (UFGS) consisting of Divisions 02 through 48 of specifications in the Construction Specifications Institute's (CSI) MasterFormat are incorporated and will be applicable to succeeding Task Orders, unless deviations are provided on the Task Order level.

The intent of the UFGS specifications is to furnish industrial and/or commercial standards for design, construction, alteration, maintenance and repair of government facilities. Special requirements or/and edited specifications that are indicated in Task Order requests shall supersede any similar requirements noted in the reference guide or other specifications provided in the basic contract.

A UFGS specification that has a fifth level number indicates that it is an agency specific specification. Preparing agencies are indicated in the UFGS header of each specification. Where multiple versions of the applicable specification exists, the NAVFAC specific specifications (those with fifth level number "20") shall be used for the preparation and execution of work on this contract.

All work will be inspected in accordance with the requirements of this contract, the Task Order, and applicable approved submittals. All work performed shall conform to the Unified Facilities Guide Specifications, standard industry work practices, and the provisions of this contract. Unless otherwise directed by the Contracting Officer all work shall be performed in accordance with the current National Fire Protection Association (NFPA) codes and standards, International Building Code, International Plumbing Code and International Mechanical Code. These Codes take precedence over all other direction that may be provided herein or with individual Task Orders UNLESS more stringent requirements are indicated in the Request for Task Order Work (the more stringent requirements take precedence.)

Contractor submitted specifications required under this contract shall be in the SPECSINTACT system format; organized using CSI MasterFormat Divisions, 3-part format and all drawings shall be submitted in AutoCAD compatible format (2006 version or as specified in the individual Task Order).

In creating the technical specifications, the Contractor may substitute proprietary product information in the specifications sections for products that have already been selected. These products must meet the minimum quality requirements of the guide specifications.

The Government reserves the right to accomplish work within the scope of the contract by Government personnel or by other contracts, at the discretion of the Contracting Officer.

2. DEFINITIONS

Contractor: The term "Contractor" as used herein refers to both the Prime Contractor and any Subcontractors. The Prime Contractor is solely responsible for ensuring all Subcontractors comply with all terms of this contract.

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Contractor Representative: A supervisor, superintendent, or project manager assigned in accordance with the clause entitled "Superintendence by the Contractor".

Task Order: A document (DD Form 1155) prepared by the Contracting Officer or Ordering Officer issued to the Contractor for work to be performed. Task Orders may be amended.

Government Representative: Person(s) designated by the Contracting Officer to be an authorized representative of the Government on this contract.

Contractor Regular Working Hours: For the purpose of the Multiplier, regular working hours are Monday through Friday from 6:00 am to 6:00 pm, except for Federal Holidays. The multiplier will apply to all work outside those hours. The hours that the site is normally available, however, is limited to a 9-1/2 hour period between 7:00am and 4:30pm, or as indicated in the individual Task Orders. Established work hours may be modified on a case-by-case basis when approved by the Contracting Officer.

Government Employee Regular Working Hours: Monday through Friday from 7:00am to 4:30 pm except Federal Holidays.

Quality Control: Program used by the Contractor to control the quality of goods and services provided.

Quality Assurance: Method used by the Government to assure quality of the end product through monitoring of the Contractor's Quality Control Program.

Site: Unless identified otherwise, the term 'site' shall mean the actual work site for each project delivery order. The term 'site' shall not be construed to imply all or large segments of any installation served in this contract.

As Directed/ As Required/ As Permitted/ Approved/ Acceptance: Where used in the contract, these terms shall be understood to indicate that the authorization/approval is by the Contracting Officer or their Authorized Representative.

3. COEFFICIENTS

3.1 The Contractor's coefficient is a numerical factor that represents indirect costs of construction. The Contractor shall propose coefficients for the base contract and shall be used for all task orders Pre-Price lined items, Non-Pre-Price line items, Work other than Regular Hours, and Escort.

3.1.1 The Coefficient for Pre-Priced line items shall be used with the most current edition of the R.S. Means (MEANS) **applicable at the time of Request for Proposal (RFP) issuance. Similarly, any modifications made to a contract Task Order will incorporate the RS MEANS edition and quarterly update in effect at the time of RFP for such modification.** The R.S. MEANS Cost Data books or software listed below shall be used by the Contractor to break down the work into individual work items by selecting unit priced tasks necessary to accomplish the detailed scope of work required by individual delivery/task orders.

- **R.S. MEANS for Hawaii, States & Possessions, Guam**
- The volumes/titles within the RS MEANS Cost Data books or software to be consulted and used to identify pre-priced work items (as listed by preference below) are as follows:

Facilities Construction Costs Book
Facilities Maintenance & Repair Costs Book
Commercial Renovation Costs Book
Building Construction Costs Book
Mechanical Costs Book
Electrical Costs Book
Plumbing Costs Book
Heavy Construction Costs Book
Site Work and Landscape Costs Book

Interior Costs Book
Residential Repair & Remodeling Costs Book

The Pre-Priced line items price is calculated by combining the R.S. MEANS bare cost (No O&P), applicable material taxes, and then multiplying that result by the appropriate Coefficient factor. No other R.S. MEANS Coefficients shall be used in addition to the contractor proposed Coefficient.

- 3.1.2 The Coefficient for Non Pre-Price line items, shall not be less than 1.00 (≥ 1.00) and used with quotes. Quotes shall be solicited, and selected by the Contractor to break down the work into individual work items by selecting priced tasks necessary to accomplish the detailed scope of work required by individual delivery/task orders. The Non Pre-Price line item price is calculated by combining the quotes total cost (which includes the installing contractor's Overhead and Profit), applicable material taxes, and then multiplying that result by the appropriate Coefficient factor.
- 3.1.3 The Coefficient for the Other than Regular Work Hours (OTR) line item shall not be less than zero (≥ 0.00). The OTR line item price is calculated by combining the OTRs cost, then multiplying that result by the appropriate Coefficient factor.
- 3.1.4 The Coefficient for the Escort line item shall not be less than zero (≥ 0.00). The Escort line item price is calculated by combining the Escort cost, then multiplying that result by the appropriate Coefficient factor.
- 3.1.5 The contractor shall propose the coefficient as a numeric expression up to three (3) decimal places. (i.e., Pre- Priced as 0.985; Non Pre-Price as 1.065; OTR as 0.025; Escort as 0.010).
- 3.1.6 Examples:
- A coefficient of 0.985 means a 1.5% downward adjustment to the total MEANS price.
 - A coefficient of 1.065 means a 6.5% upward adjustment to the total Quoted price
 - A coefficient of 0.025 means a 2.5% upward adjustment to the OTR Price.
 - A coefficient of 0.010 means a 1.0% upward adjustment to the Escort price

3.2 The Coefficient must include all costs that cannot be charged to any specific work elements/Means line items. The coefficient shall include, but is not limited to, the items listed below.

General and Administrative Overhead **for Prime & Sub-Contractors**, including but not limited to:

- Salaries of personnel required to operate and manage the contract, information technology and computer equipment required to manage the contract, off base storage facilities, offices, administrative supplies, job site supervision, vehicle operations and maintenance expenses and telephone charges.
- Fringe Benefits.
- Field Overhead.
- Home Office Overhead.
- Bond premiums.
- Insurance.
- Costs for purchase of equipment and vehicles; tools of the trade.
- Office equipment and supplies.
- Compliance with safety standards (note- coefficient does not include permanently installed safety devices requested by the Government in the Task Order.).
- Compliance with security requirements.
- Compliance with environmental laws (overhead (indirect) costs associated with performing work in compliance with EPA/OSHA, and individual Station regulations, including obtaining any necessary licenses and routine permits, dig permits, outages, reporting requirements, training, et) NOTE: Costs for preparation of formal environmental permits such as storm water management plans, where design effort is necessary to prepare documents to submit to the State

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environmental office, are not to be part of the coefficient, they will be negotiated as non-pre-priced items.

- The Contractor's risk factor including City Cost Index.
- Escalation costs.
- Indirect labor such as incidental engineering and planning, research of products and materials, and development of shop drawings and submittals.
- Company officers and support staff.
- Superintendence.
- Quality Control, including daily Quality Control Reports.
- Site Safety and Health Officer (SSHO)
- Employer's portion of taxes such as FICA, unemployment compensation, and fringe benefits; compensation for wage differential between the applicable Davis-Bacon hourly wage requirements and the pre-priced unit line items (after adjustment for the City Cost Index).
- Profit.
- Differences in Federal and State Unemployment costs, Builders Risk Insurance and Public Liability costs.
- Use of Unified Facility Guide Specifications and Commercial specifications.
- Utility scopes, facility protection, safety, fire protection.
- All costs associated with compliance with administrative requirements of specifications a
- All costs associated with computer hardware/software applications.
- All costs associated with computer hardware/software to enable electronic correspondence with the Government.
- Production of AutoCAD drawing files (drafting) necessary to provide shop drawing information or submit record drawings where CAD drawings were provided by Government in the RFP.
- Waste and Excess Quantities included in Completed-in-Place Construction Quantities. (All prices in R.S. MEANS Cost Data Books are for completed-in-place construction unless explicitly described otherwise. Waste or excess material quantities are incidental costs that are included within the contract coefficient unless explicitly stated otherwise. Quantities used on individual task order proposals shall be taken from field measurement or design plans, as appropriate, without allowance for waste.)
- Required Tools/Equipment. The representative listing of tools and equipment that apply to the various trades. These items are representative of, but not limited to, those that the Contractor is expected to provide as part of normal overhead cost. See table below.

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Airlines (drop line)	Hammers, hand	Saws, Power Miter Box
All hand tools	Hammers, chipping	Saw Horses
Awl	Hammer, Jack	Scaffolding, Portable, (8' table height)
Axes	Industrial Vacuum and Hepa Vac	Scraper (hand held)
Brusher	Jack, Hydraulic (12 tons or less)	Screw drivers
Barricades, Safety	Knives	Screw Drivers, Electric
Bolt cutters	Ladders (step to 12' and extension to 24')	Scribers
Barrier tape	Lead pot and Ladle	Shears (hand held)
Broom	Levels	Shovels
Cable cutters	Levels, Builders	Sledgehammers
Cable pullers/Hoist (hand held)	Level, laser	Squares
Can Opener	Lighting, Temporary (up to 6 each)	Staplers, Air/had
Calking Gun	Nailer, Pneumatic	Steel Framing Tools
Caulking/Yarning Irons	Nail Sets	Lightweight Steel Framing
Chain Saw	Picks	Tampers (hand held, non-powered)
Chisels	Planes, (hand held)	Tapelines
Clamps	Planes, Electric, (hand held)	Tarpaulins (12' x 24" maximum of 5 each)
Cleaning Equipment (hand held)	Pliers	Temporary Lighting (400 square feet)
Compressor (sized as required to run tools)	Powder Actuated Fastening	Tin Slips
Conduit bender	Tools	Torch, hand
Crow Bars	Plumb Bob	Torch Igniters
Dividers	Pot Hook	Trash Receptacles 95/gallon, 4 each)
Drift Pins	Personal protective Equipment	Trowels (non-powered, hand held)
Drill, pneumatic	Punches	Tool Boxes (personal)
Drill, pneumatic bits (up to 1 1/4 dia)	Rake	Traffic cones
Drill, Motors (hand held)	Rasps 9files0	Tubing Cutters (hand held, non-powered)
Drill, Bits	Reinforcing steel, Shear and Bender	Vacuum, wet/dry 95 gal)
Drill, Hole Saw	Rivet Sets (light, hand held)	Vehicles (up to 1.5 ton)
Drill, Rotary hammer (up to 1 1/4 dia)	Rollers-Flooring	Vice
Extension Cords	Rules	Volt Meter, bolt/ohm meter
Files (hand held)	Safety equipment (PPE)	Wheel Barrow (non-powered)
Fish tapes	Safety fencing (orange plastic)	Wire Strippers
Gloves	Sanders (hand held)	Wrenches
Flash Lights	Saws, hand	
Floats (hand held)	Saws, electric Hand, Circular	
Groover, Pipe (hand held)	Saws, Electric Hand, Reciprocating	
Hacksaws	Saws, Backsaws and Miterbox	
Hot Tap (hand held)		

- Incidental work associated with a line item, such as removing a manhole cover, moving ceiling tiles, removing electrical panel board covers, et al.
- Daily and final cleaning of the work site.
- Trash containers, dumpsters, roll-offs – including delivery, pick-up and disposal fees (does not include handling and disposal of hazardous wastes).
- Costs associated with protecting existing equipment and areas from dust, over-spray, et Drop cloths, plastic sheeting, and protective screening/barriers shall be included in the coefficients.

The prime contractor considers the extent of subcontracting in their development of their coefficients (pre-priced non pre-priced). The Offeror's coefficient must be all inclusive and shall apply for the prime contractor and all subcontractors. The direct costs associated with the subcontractor at the task order level are identified but the indirect costs associated with the coefficient as it relates to subcontracting is already included in the negotiated coefficient.

3.3 Coefficient for Non-Pre-priced Work: The Government may require the provision of non-pre-priced item(s) for projected task orders. Non-pre-priced items are defined as facilities maintenance / construction materials, services, and work not listed by the R.S. MEANS Cost Data Books. The Government and Contractor will negotiate a fair and reasonable price to perform the non-pre-priced work. The Government will not consider an item as non-

pre-priced if the materials or services are listed in the Means Cost Data books or the non-pre-priced item has been established as a pre-priced item by prior modification. The Contracting Officer's determination as to whether an item is a pre-priced task or a non- pre-priced task shall be final, binding and conclusive.

3.4 The contractor's coefficients shall NOT include costs for professional design and engineering. When professional design and engineering services are required, it will be so noted on the Request for Proposal (RFP). The contractor's proposal for design and engineering services shall be separate from the costs for facilities maintenance / construction. The contractor's proposal for design and engineering costs shall be based on the negotiated rates and fees negotiated after award. The contractor's proposal for design-build projects shall include all engineering services required for design, including but not limited to site surveys, soil borings, field investigation, lead and asbestos surveys, review meetings, energy analysis, printing and shop drawing review.

3.5 The costs for preparation of Task Order proposals including scoping meetings and site visits shall be the responsibility of the Contractor and shall be included in the coefficient. Task Order proposal preparation is not reimbursable. Government requests for proposals shall not constitute an award or commitment.

3.6 Tools and Equipment. This is a representative listing of tools and equipment that apply to the various trades. These items are indicative of, but not limited to; those that the Contractor is expected to provide as part of normal overhead cost.

4. ORDERING OF WORK

As the need exists for performance under the terms of this contract, the Contracting Officer or his/hers authorized representative will notify the Contractor of an existing requirement. The information provided to the Contractor identifying the requirement will vary from a basic concept to full plans and specs.

Upon receipt of the notification of requirement, the Contractor shall respond to the needs of the Government within two working days by:

- a. Arranging a Site Visit to the proposed work site in the company of the Contracting Officer or his/her authorized representative; or
- b. Establish verbal contact with the Contracting Officer or his/her authorized representative to further define the scope of the requirement as necessary.

5. JOINT SCOPING

The use of Joint Scoping between the Contractor and the Government is encouraged to fully identify the work needed to fulfill the requirement. If requested by the Contracting Officer or their authorized representative, Joint Scoping shall be accomplished as described herein.

When requested, a Joint Scoping Review shall be conducted to enable the Contractor to detail the project based on: information provided by the Government in writing (the scope of work); the conditions observed at the site; and discussion with the Government's authorized representatives. Any deficiencies, omissions, or conflicts in the Government's scope of work that are identified during the site visit shall immediately be brought to the attention of the Contracting Officer, in writing, for resolution prior to submission of the Contractor's proposal.

The Contractor may submit written recommendations for changes, deviations or value engineering alternatives to the Government's original project scope that will provide better quality, maintainability, constructability, operability, or price to the Government. The recommended changes to the Government's scope shall be clearly identified in the form of a narrative description, with drawings or sketches as necessary, and shall reference the technical specification requirements.

The Contractor shall submit the proposed Joint Scope to the Contracting Officer for review within 3 days after the site visit (or longer for large (over \$250,000.00) and more complex projects, as allowed by the Contracting Officer.)

Upon establishment of the final scope of the individual task order, the Contractor shall then prepare his proposal for accomplishment of the task.

6. PREPARATION OF PROPOSAL

6.1 The Contractor's proposal shall include support documentation to demonstrate that adequate engineering and planning for the requirement has been done and that the tasks proposed are reasonable for the work to be performed. Documentation to be submitted with the proposal shall include as appropriate, but not be limited to, a detailed unit price estimate arranged in order according to the CSI format, Contractor prepared drawings, calculations, catalog cuts, specifications, architectural renderings; a preliminary schedule indicating mobilization, submittals, material lead times, performance, phasing, et The Government may duplicate, use, and disclose in any manner and for any purpose such documentation delivered under this contract.

6.2 For pre-priced tasks, the Contractor shall identify the task (line and sub-line) and quantities required from the R.S. MEANS Cost Data books. The total cost unit price set forth in the R.S. MEANS Cost Data books (including the installing Contractor's Overhead and Profit) shall serve as the base price for the purpose of the operation of this provision, and this value shall be shown for each line item. The Contractor shall not adjust the Means line items costs or output values in any way.

6.3 The R.S. Means Cost Data books are incorporated by reference. The Government will not provide the R.S. MEANS Cost Data books for Contractor use. The Cost Data books contain pricing information for the description of work to be accomplished and for the unit of measure specified. Currently the R.S. MEANS Cost Data books are updated and republished by R. S. MEANS Company annually. For the purposes of pricing work under this contract, **the most current edition of the R.S. Means (MEANS) applicable at the time of Request for Proposal (RFP) issuance shall be used.** The Contractor must purchase their own licenses annually for any MEANS databases used, and must provide formal training to estimators on their staff. Cost proposals are to be submitted in Microsoft Excel format as the contract standard; other formats may be submitted as permitted by the Contracting Officer. All electronic files are to be identified by Task Order number and date.

6.4 The order of precedence for use of the R.S. MEANS books is as follows: Facilities Construction Cost Data, Repair and Remodeling Cost Data, Mechanical Cost Data, Electrical Cost Data, Plumbing Cost Data, Building Construction Cost Data, Heavy Construction Cost Data, Site Work and Landscape Cost Data, Interior Cost Data

* MEANS CostWorks software is an acceptable estimating tool for use on this contract. It may be used in lieu of the printed editions of the books listed above.

6.5 The unit price (pre-priced bare cost items) as shown in the R.S. MEANS Cost Data Books shall be considered to include all pertinent costs listed below (unless specifically stated otherwise in R.S.MEANS):

- Material costs, material waste factors, and all other minor material items necessary for complete installation (e.g., nails, screws, caulking, hinges, nuts, bolts, fasteners, tape et).
- All equipment or vehicles necessary, either owned or rented, including all operation and maintenance costs and taxes; and
- All small tools necessary to install a complete and usable item,
- Final Clean-up costs.
- All direct labor necessary for complete installation.
- Delivery of materials, including freight, within 40 miles of the job site.
- Note: there shall be no "small quantity adjustment" allowed unless there a specific minimum labor/equipment charge is indicated for that particular line item in MEANS.

6.6 The Assemblies Section of the MEANS COST DATA books should be utilized whenever applicable. The cost data in the Assemblies Section has been organized by the functional elements of a building. When new construction required by a Task Order matches the functional element contained in the Assemblies Section, the

Contractor shall price the work using the Assemblies line items. Contractor shall not break up the individual

components of an appropriate Assemblies line item.

6.7 When the MEANS line item price is significantly lower than the actual cost of an item due to extreme market volatility or other circumstances, the Contractor is permitted to submit a request to the Contracting Officer for conversion of the item to a non-pre-priced item. The burden of proof demonstrating the conflict between MEANS and actual market conditions is on the Contractor. An item is considered significantly lower if the actual price is at least 25% more than the MEANS price (including tax and Location Factor Adjustment).

6.8 The MEANS COST DATA books unit costs are NOT to be adjusted based on variances or expected increase. No adjustments to the Unit Price (including O&P) shall be made.

6.9 Non-pre-priced tasks, if any, shall be separately identified in the proposal. Submit the information in support of non-pre-priced tasks as identified including a total extended price. The price offered in the proposal shall be determined by multiplying the total extended price by Contractor's non-pre-priced coefficient adjustment factor.

Contractor's proposal for non-re-priced line items will be considered, as submitted, provided the contractor ensures that fair and reasonable prices are obtained for services or materials under \$2,500. For services or materials in excess of \$2,500, the contractor shall obtain a minimum of three competitive quotes from companies that normally perform or are qualified to perform the task. The contractor shall submit to the Contracting Officer, a detailed quote abstract reflecting the quotes received, including a copy of the lowest offer. The Contractor shall maintain complete supporting documentation (including responsibility and responsive checks) necessary to provide a complete and accurate audit trail of all actions for the Contracting Officer's review. Upon receipt and review of the abstract by the Contracting Officer, a coordination meeting may be initiated with the Contractor to resolve any discrepancies. Upon satisfactory review by the Contracting Officer, the Non Pre-Priced work will be accepted for the negotiated price. Non Pre-Priced items of work shall be so noted on each Contractor proposal.

After a non-pre-priced task is negotiated and used on multiple Task Orders, the unit price for such task may be established by the Contracting Officer as a permanent pre-priced task that will no longer require price justification and negotiation. Such will be incorporated in the contract through modification.

6.10 Proposals for modifications shall be priced the same way as the work on the Task Orders using the formats and coefficients established in the contract. In the event that a deductive modification is negotiated, the basis for pricing shall be the same as submitted under the original proposal.

6.11 The Contractor's proposal shall be submitted by the date indicated on the Request for Proposal. If the date is NOT included in the RFP, the "Estimated Project Cost, Working Days" schedule, as stated below, shall be used. The time allowed for preparation of the Contractor's proposal will depend on the complexity and urgency of the Task Order. On complex Task Orders, such as projects requiring engineering/architectural design and/or approvals and permits, allowance will be made to provide adequate time for preparation and submittal of the necessary documents with the proposal. In emergency situations and when urgent maintenance and repair Task Orders require immediate completion, the proposal may be required quickly and the due date will be so indicated on the Request for Proposal.

For routine projects, the following time frames will be used as a guideline (based on working days after establishment of the final scope of work):

Estimated Project Cost*		Working Days
\$2,000 to	\$25,000	1 - 90
\$25,000 to	\$100,000	90 - 120
\$100,000 to	\$250,000	120 - 150
\$250,000 to	\$750,000	150 - 210

*Based on Government Scoping Estimate

7. REVIEW OF PROPOSAL

7.1 Upon receipt of the Contractor's proposal, the Government will review the proposal for completeness and reasonableness. If necessary, the Contracting Officer will arrange with the Contractor to discuss the scope of all pre-priced items and to negotiate all non-pre-priced items and performance times. Upon completion of negotiations, the Contractor shall submit a "clean copy" of their proposal reflecting agreed upon line items, time frames, and the final scope.

7.2 The Contracting Officer or his/her authorized representatives reserves the right to reject a proposal for any reason, including, but not limited to: the quantities or tasks selected by the Contractor, schedule, inadequate documentation, or unacceptable pricing for non-pre-priced work. The Contracting Officer also has the right to cancel an RFP if the proposed cost significantly exceeds the Government estimate or budget, or it is otherwise determined to be in the best interests of the Government. The Contractor has no claim to recoup proposal expenses. The Government may pursue the performance of such work by other means.

7.3 The Contracting Officer will issue a Firm Fixed Price Task Order for the work. The costs negotiated and documented in the final proposal will be fixed. Upward or downward adjustments will not be made due to quantity or other estimating errors. (For example, a Task Order requires a concrete pad that is estimated by the Contractor to take 10 cu. yd. of concrete. If the pad ends up requiring 12 cu. yd., no price adjustment will be made for the additional 2 cu. yds. of concrete. On the other hand, if the pad ends up requiring only 5 cu. yd., no downward adjustment to the price will be made.) The only exemption are those items specifically identified during the RFP requiring upward or downward adjustment.

8. ISSUANCE OF TASK ORDER

8.1 Task orders will be issued by the Contracting Officer using a DD form 1155. Each task order will include the following information:

- Date of the task order
- Contract number and task order number
- Scope of work and total price
- Task order price, delivery and performance date
- Start and completion dates
- Accounting and appropriation data
- Product Service Code (PSC)
- Applicable SCA Wage Determination (for maintenance work ONLY)
- Any other pertinent data

8.2 The Task Order document (DD Form 1155) is the Contractor's notice to proceed (NTP). The document is prepared by the Contracting Officer and is issued to the Contractor for work to be performed. Task Orders will be fixed priced with specific completion dates and shall clearly define the specific services to be performed or the performance desired. Each Task Order may include additional requirements beyond those already included or referenced in the basic contract. **** Note: No separate NTP letter will be issued.****

Formal modifications to the Task Orders will be issued as necessary and may be amended on Form SF-30.

In the event that the Government and Contractor fail to agree (in whole or in part), on the MEANS line item quantities, or non-pre-priced items, a Firm Fixed Price Task Order may be issued unilaterally. The Contractor shall then proceed with the work. During or after performance, the Contractor may seek resolution in accordance with applicable contract clauses.

8.3 Non-Definitive Task Order / Unfixed Contract Action (UCA): Most Task Orders issued will be definitive (a defined price based on predetermined tasks and quantities). However, under emergency conditions, or when otherwise appropriate, the Contracting Officer may issue a non-definitive (lacking definitive tasks or quantities) Task Order which directs the Contractor upon issuance of the order to proceed with the work immediately. These unilateral orders will specify the work as non-definitive and will contain a maximum (not-to-exceed) dollar amount, against which the Contractor can submit invoices, during contract performance. The final

price will be determined through negotiations to identify pre-priced and non-pre-priced tasks and quantities.

Within 2 days from the notice to proceed of the Non-Definitive Task Order, the Contracting Officer will conduct a joint scoping meeting with the Contractor as per Section 4 to further identify the work and establish Task Order requirements. Following Government acceptance of the detailed scope of work, the Contractor shall prepare and submit a proposal.

The Government will review the Contractor's proposal as per paragraph 7 above. Upon completion of negotiations, the Contracting Officer will issue a Modification to the Task Order to incorporate the detailed scope of work, other Task Order requirements, and the final Task Order price. Failure to reach an agreement on the final price will be settled using applicable contract clauses.

8.4 Oral Orders: Only the Contracting Officer may issue oral orders in emergency circumstances. Oral orders will be confirmed by issuance of a written delivery order within two (2) work-days after the oral order is placed.

8.5 Modifications to delivery orders: Delivery orders may be modified by agreement between the Contracting Officer and the contractor. Modifications to delivery orders shall be effected on a Standard Form 30 (SF30). Orders may be modified orally by the Contracting Officer in emergency circumstances. Oral modifications shall be confirmed by issuance of a written modification on SF30 as soon as practicable.

8.5.1 The pricing for modifications to a Delivery Order shall utilize the coefficient in effect at time of execution.

8.6 Lean Task Order and Lean Modification: The Government intends to use a streamline process for actions valued less than Simplified Acquisition Threshold (SAT).

8.7 Prior to commencing work under a Task Order (unless otherwise determined unnecessary), a pre-construction or pre-performance conference shall be held.

8.8 The Contractor shall complete all work by the required completion date specified in the Task Order. The completion date may be extended only as negotiated and modified in the Task Order. Upon Task Order completion and Government acceptance of the work, the contractor shall complete a final release and submit it with a request for final payment.

8.9 Performance and Payment Bonds, will be required for task orders over \$150,000.

8.10 Task Order Liquidated Damages: Construction, Liquidated Damages shall be included in each request for proposal and incorporated into the Task Order identifying the liquidated damages rates applicable to that Order. If the contractor fails to complete the work within the time fixed in the Order or any extension thereof, the Contractor shall pay to the Government as liquidated damages for each Task Order.

8.11 Omissions from the drawings or the mis-descriptions of details of work which are manifestly necessary to carry out the intent of the drawings and specifications or which are customarily performed, shall not relieve the contractor from performing such omitted or mis-described details of the work but they shall be performed as if fully and correctly set forth and described in the drawing and specifications.

9. EXECUTION OF WORK.

9.1 Preconstruction / Pre-Performance Meeting/Conference. Within seven (7) days after Task Order issuance, the Contractor shall schedule a Preconstruction / Pre-performance Conference with the Contracting Officer to be held either within fifteen (15) days of Task Order issuance or early enough to ensure timely completion of the work. The Preconstruction conference may address specific work requirements and restrictions, safety requirements, quality control requirements, project team personnel assignments, security requirements, scheduling, and any other pertinent information regarding the work. Work shall not proceed until after the preconstruction meeting, unless otherwise permitted by the Contracting Officer's Representatives. Failure of the Contractor to request a Preconstruction / Pre-performance conference in a timely manner will not be cause for a time extension on the task order.

9.2 Materials and equipment may not be stored at the jobsite lay down area after work hours unless approved in advance by the Contracting Officer. The availability of job site lay down areas is dependent upon Task Order size and location of the work. Job site lay down availability will be included with each RFP and resulting Task Order.

9.3 The Contractor shall also provide 24 hour, 7 days a week, emergency contact phone numbers where Contractor Representatives can be reached by the Government for the ordering of work, or for active job-site related issues. At least one of the emergency contacts shall be designated to be authorized to negotiate and obligate the Contractor to perform additional work.

10. PARTNERING

Partnering is not required but, the Government may request the formation of a cohesive partnership with the Contractor and its subcontractors. The partnership will draw on the strength of each organization in an effort to achieve a quality project done right the first time, within the budget, on schedule, and without any safety mishaps. Formal partnering sessions are recommended to foster this partnership with NAVFAC Marianas, and also may be requested with each individual Ordering Office. The Contractor shall furnish the facilities and pay all costs associated with the session(s).

11. WAGE DETERMINATIONS

This contract is subject to Fair Labor Standards Act (FLSA) and Service Contract Act (SCA) wage determinations. Generally, the Davis Bacon Act (DBA) does not apply to federal construction contracts in Guam, Puerto Rico, the Virgin Islands or other territories. However, some "Related Acts" which provide federal assistance to construction activities in these territories require the payment of Davis-Bacon prevailing wage rates.

Foreign locations including FSM and Palau are not subject to US labor standards. Contractor is required to comply with local laws and regulations.

12. CONSTRUCTION AND DESIGN SPECIFICATIONS

The Contractor shall perform work in accordance with the Government provided JOC Construction and Design Specifications (Attachment J). The contractor shall communicate all concerns regarding the specifications to the Contracting Officer, and the Contracting Officer's Representative (COR) within a reasonable time to allow for discussion and resolution, in order to mitigate concerns with project schedules.